

Sudarshan Hirwe vs Smt. Archana on 8 January, 2024

Author: Sushrut Arvind Dharmadhikari

Bench: Sushrut Arvind Dharmadhikari

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IN THE HIGH COURT OF MADHYA PRADESH
AT INDORE
FA No. 1412 of 2019
(SUDARSHAN HIRWE Vs SMT. ARCHANA)

Dated : 08-01-2024

Shri Pankaj Soni - Advocate for the appellant.

Shri Manish Gupta - Advocate for the respondent.

Heard on IA No. 7448 of 2023, which is an application filed by the appellant/husband under Section 151 of the CPC, 1908 read with Section 21 of the Hindu Marriage Act, 1955.

2. The application in nutshell is that by order dated 06.09.2021 the Court has allowed IA No. 2704 of 2021 filed under Section 24 and 25 of the Hindu Marriage Act, 1955 and directed the appellant to pay Rs.10,000/- per month towards maintenance to the respondent/wife and her minor son till the disposal of this appeal and in that order the earlier order of maintenance allowance of Rs. 4,000/- was adjusted. During the pendency of this appeal on 25.02.2023, learned Judicial Magistrate First Class, Khargone has decided the application of the respondent under Section 12 of the Domestic Violence Act, 2005 and directed the appellant herein to pay Rs. 5000/- per month towards the house rent and Rs. 10,000/- towards the monetary relief and awarded Rs. 25,000/- towards the compensation relief to the respondent. Copy of the order dated 25.02.2023 passed by the Judicial Magistrate First Class, Khargone is annexed as Annexure-A-1. The appellant is a Police Constable and getting only salary of Rs. 37,412/- per month and in compliance of the order of this Court an order passed by the learned Judicial Magistrate First Class, Khargone he is required to pay a total sum of Rs. 25,000/- per month after the monthly payment of EMI for the Housing loan and the LIC policy appears to be on very higher side.

The Hon'ble Apex Court has time and again hold that any amount awarded under Section 12 of the Domestic Violence Act, 2005 is adjustable against the amount awarded in the matrimonial proceedings under Section 24 of the Hindu Marriage Act.

3. In this factual matrix while computing the amount of maintenance payable to the respondent the amount paid by the appellant husband under Section 12 of the Domestic Violence Act, 2005 may kindly be adjusted and amount of maintenance payable under Section 24 of the Hindu Marriage Act, 1955.

Learned counsel for the appellant also placed reliance upon the judgment passed by the Hon'ble Apex Court in the case of Sudeep Chaudhary Vs. Radha Chaudhary reported in (1997) 11 SCC 286 wherein it is held that the maintenance awarded under Section 125 of the CrPC is adjustable against the amount awarded in matrimonial proceedings.

4. Learned counsel for the respondent has not objected on the factual ground and he has fairly admitted that Rs. 10,000/- per month towards the monetary relief and Rs. 5000/- per month towards the house rent has been ordered by the Judicial Magistrate First Class, Khagone vide order dated 25.02.2023.

5. Heard learned counsel for the parties and perused the said Interlocutory application.

6. This Court vide order dated 06.09.2021 directed the appellant/husband to pay a sum of Rs. 10,000/- towards maintenance from Rs. 4000/-.

7. As per the judgement delivered by the Apex Court in the case of Rajnesh Vs. Neha and others reported in (2021) 2 SCC 324 regarding the simultaneously proceedings under the different enactment for maintenance considered and held that simultaneous proceeding for the maintenance is permissible, but this has also been directed by the Apex Court that if wife is getting maintenance under previously instituted proceedings she is under legal obligation to disclose the same in a subsequent proceedings for maintenance which may be filed in another enactment. The relevant paragraphs No. 54, 60 and 61 in the case of Rajnesh Vs. Neha (supra) wherein the Apex Court dealt with the adjustment of the amount awarded in subsequent proceedings are reproduced as under :-

"54. On the other hand, the Bombay and Delhi High Courts, have held that in case of parallel proceedings, adjustment or set-off must take place. The Bombay High Court in a well-reasoned judgment delivered in Vishal v. Aparna and Anr. has taken the correct view. The Court was considering the issue whether interim monthly maintenance awarded Under Section 23 r.w. Section 20 (1)(d) of the D.V. Act could be adjusted against the maintenance awarded Under Section 125 Code of Criminal Procedure. The Family Court held that the order passed under the D.V. Act and the Code of Criminal Procedure were both independent proceedings, and adjustment was not permissible. The Bombay High Court set aside the judgment of the Family Court, and held that Section 20(1)(d) of the D.V. Act makes it clear that the maintenance granted under this Act, would be in addition to an order of maintenance Under Section 125 Code of Criminal Procedure, and any other law for the time being in force. Sub-section (3) of Section 26 of the D.V. Act enjoins upon the aggrieved person to inform the Magistrate, if she has obtained any relief available Under Sections 18, 19, 20, 21 and 22, in any other legal proceeding filed by her, whether before a Civil Court, Family Court, or Criminal Court. The object being that while granting relief under the D.V. Act, the Magistrate shall take into account and consider if any similar relief has been obtained by the aggrieved person. Even though proceedings under the D.V. Act may be an independent proceeding, the Magistrate cannot ignore the maintenance awarded in any other legal proceedings, while determining whether

over and above the maintenance already awarded, any further amount was required to be granted for reasons to be recorded in writing. The Court observed:

18. What I intend to emphasize is the fact that the adjustment is permissible and the adjustment can be allowed of the lower amount against the higher amount. Though the wife can simultaneously claim maintenance under the different enactments, it does not in any way mean that the husband can be made liable to pay the maintenance 17-

11-2020 (Page 20 of 48) www.manupatra.com Library Dwarka awarded in each of the said proceedings." (emphasis supplied) It was held that while determining the quantum of maintenance awarded Under Section 125 Code of Criminal Procedure, the Magistrate would take into consideration the interim maintenance awarded to the aggrieved woman under the D.V. Act.

60. It is well settled that a wife can make a claim for maintenance under different statutes. For instance, there is no bar to seek maintenance both under the D.V. Act and Section 125 of the Code of Criminal Procedure, or under H.M.A. It would, however, be inequitable to direct the husband to pay maintenance under each of the proceedings, independent of the relief granted in a previous proceeding. If maintenance is awarded to the wife in a previously instituted proceeding, she is under a legal obligation to disclose the same in a subsequent proceeding for maintenance, which may be filed under another enactment. While deciding the quantum of maintenance in the subsequent proceeding, the civil court/family court shall take into account the maintenance awarded in any previously instituted proceeding, and determine the maintenance payable to the claimant.

61. To overcome the issue of overlapping jurisdiction, and avoid conflicting orders being passed in different proceedings, we direct that in a subsequent maintenance proceeding, the Applicant shall disclose the previous maintenance proceeding, and the orders passed therein, so that the Court would take into consideration the maintenance already awarded in the previous proceeding, and grant an adjustment or set-off of the said amount. If the order passed in the previous proceeding requires any modification or variation, the party would be required to move the concerned court in the previous proceeding."

8. In light of the aforesaid factual position, and of law laid down by the Apex Court, the IA No. 7448 of 2023 stands allowed and it is directed that the amount paid by the appellant/ husband to her wife/respondent pursuance to the order passed in MJCR No. 133 of 2017 dated 25.02.2023 by the Judicial Magistrate First Class, Khargone shall be adjusted in the maintenance awarded in favour of the wife.

9. With the aforesaid, IA No. 7448 of 2023 stands allowed and disposed off.

(S. A. DHARMADHIKARI)
JUDGE

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